

Data Protection Authority
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The State Secretary for Infrastructure and Water Management
P.O. Box 20901
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Date

June 26, 2023

Our reference

z2023-02484

Your letter of

April 26, 2023

Subject

Advice on the draft amendment of the Fireworks Decision regarding pyro-pass

Dear Ms. Heijnen,

In your letter dated April 26, 2023, the Data Protection Authority (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation regarding the draft Decision of [...] to amend the Fireworks Decision in connection with the implementation of the Benelux decision concerning the introduction of a pyro-pass and several other amendments (hereinafter: the draft).

The AP has a comment on the draft and advises that this be taken into account.

Scope of the draft

Pursuant to Directive 2013/29/EU¹, certain pyrotechnic articles² may only be offered on the market to individuals with specialized knowledge. The Benelux decision regarding the introduction of the pyro-pass³ (hereinafter: the Benelux decision) aims to introduce a uniform control document (pyro-pass) so that a person wishing to purchase pyrotechnic articles within the Benelux can prove that they possess the required specialized knowledge.

¹ Directive 2013/29/EU of the European Parliament and the Council of June 12, 2013, on the harmonization of the laws of the Member States concerning the placing on the market of pyrotechnic articles (PbEU 2013, L 178).

² Pyrotechnic article: any article that contains explosive substances or an explosive mixture of substances intended to produce heat, light, sound, gas, or smoke, or a combination of such phenomena through self-sustaining exothermic chemical reactions (Article 3, first paragraph, of Directive 2013/29/EU).

³ Decision of the Benelux Committee of Ministers regarding the introduction of a pyro-pass, M (2020) 14 (Benelux Official Gazette 2021, no. 1).

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The Netherlands must maintain a register of issued pyro-passes⁴ under the Benelux decision. This pyro-pass register must be accessible to a market participant prior to the provision of a pyrotechnic article.⁵

The Collection Act IenW 2021 contains the legal basis for data processing in the pyro-pass register. The draft contains a further elaboration of the pyro-pass and the pyro-pass register, including the

issuance of the pyro-pass, the verification of the pyro-pass, and the accessibility of the pyro-pass register.

Advice

Simple inquiry of the pyro-pass register

According to the explanation accompanying the Collection Act IenW 2021, consultation of the pyro-pass register by a market participant is limited to an inquiry based on the serial number of the pyro-pass to verify whether the relevant pyro-pass is valid. It does not allow the market participant to freely search the pyro-pass register for data of other persons than the buyer presenting themselves, according to the explanation.⁶

The AP advises that this inquiry of the pyro-pass register by means of the serial number of the pyro-pass be included in the draft, so that it is legally ensured that not all personal data in the register are visible to a market participant and that a market participant cannot easily access personal data by searching other than by the serial number.

Workload of the AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure of the advice

The AP intends to make this advice public no earlier than four weeks after the date on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,
Data Protection Authority,

Aleid Wolfsen
Chairman

4 Article 4, first paragraph, of the decision.

5 Article 4, second paragraph, of the decision.

6 Parliamentary documents II 2022/23, 36 268, no. 3, p. 9.